

Operating Agreement of Ember Horizon Studios LLC

A Missouri Single-Member Limited Liability Company

This Operating Agreement ("Agreement") is entered into as of May 4, 2026, by Jacob O'Donnell ("Member"), the sole member of Ember Horizon Studios LLC, a Missouri limited liability company (the "Company").

Article I — Organizational Matters

1.1 Name. The name of the Company is Ember Horizon Studios LLC.

1.2 Formation. The Company was formed on May 4, 2026, upon the filing of Articles of Organization (Missouri SOS Charter No. LC014731888) with the Missouri Secretary of State, pursuant to the Missouri Limited Liability Company Act, Chapter 347 of the Revised Statutes of Missouri (the "Act").

1.3 Principal Office. The principal office of the Company is located at 5 Pilot Hill Dr, Saint Peters, MO 63376-2761, or at such other location as the Member may designate from time to time.

1.4 Registered Agent. The registered agent of the Company in Missouri is Jacob O'Donnell, 5 Pilot Hill Dr, Saint Peters, MO 63376-2761. The registered agent may be changed by the Member at any time in accordance with the Act.

1.5 Purpose. The purpose of the Company is to engage in the business of video game development and any and all other lawful business for which a limited liability company may be organized under the laws of Missouri.

1.6 Term. The Company shall have a perpetual existence and shall continue until dissolved in accordance with the Act or this Agreement.

Article II — Membership

2.1 Sole Member. Jacob O'Donnell, whose address is 5 Pilot Hill Dr, Saint Peters, MO 63376-2761, is the sole member of the Company and holds one hundred percent (100%) of the

membership interest in the Company.

2.2 Capital Contributions. The Member has made or shall make an initial capital contribution to the Company in such amount as the Member deems appropriate. No minimum capital contribution is required. The Member may, but is not obligated to, make additional capital contributions at any time.

2.3 No Other Members. No other person shall be admitted as a member of the Company without the prior written consent of the Member and an amendment to this Agreement.

2.4 Membership Interest. The Member's entire interest in the Company is personal property and may be transferred, in whole or in part, in the Member's sole discretion, subject to Article VI of this Agreement.

Article III — Management

3.1 Member-Managed. The Company shall be managed exclusively by its Member. The Member shall have full, exclusive, and complete authority, power, and discretion to manage and control the business, property, and affairs of the Company, to make all decisions regarding those matters, and to perform any and all acts customary or incident to the management of the Company's business.

3.2 Authority of Member. The Member is authorized, on behalf of and in the name of the Company, to:

- (a) Open, maintain, and close bank accounts and investment accounts;
- (b) Enter into contracts, agreements, and legally binding obligations;
- (c) Acquire, hold, lease, encumber, and dispose of Company property;
- (d) Hire, compensate, and terminate employees, contractors, and agents;
- (e) Commence, defend, and settle legal proceedings;
- (f) Make distributions to the Member; and
- (g) Take any other action necessary or appropriate to carry on the business of the Company.

3.3 Meetings. As sole member, the Member is not required to hold formal meetings. Any action required or permitted to be taken by the Member may be evidenced by written decision, consent, or notation in the Company's records.

3.4 Officers. The Member may appoint one or more officers to assist in managing the Company's operations. Officers shall serve at the pleasure of the Member and may be removed by the Member at any time, with or without cause.

Article IV — Finances and Tax

4.1 Tax Treatment. For federal and state income tax purposes, the Company shall be treated as a disregarded entity (sole proprietorship). All income, losses, deductions, and credits of the Company shall be reported on the Member's individual income tax return.

4.2 Employer Identification Number. The Company's federal Employer Identification Number (EIN) is 42-2338436.

4.3 Fiscal Year. The Company's fiscal year shall be the calendar year, January 1 through December 31.

4.4 Books and Records. The Company shall maintain accurate and complete books and records of its business and financial affairs at its principal office or at such other location as the Member designates. The Member may inspect all books and records at any time.

4.5 Bank Accounts. The Company shall maintain one or more bank or financial accounts in the name of the Company. The Member is authorized to designate signatories on all such accounts.

4.6 Profits and Losses. All profits and losses of the Company shall be allocated entirely to the Member.

4.7 Distributions. The Member may, in the Member's sole discretion, cause the Company to make cash or in-kind distributions to the Member at any time and in any amount, subject to the requirements of the Act and the Company's ability to pay its debts as they become due in the ordinary course of business.

Article V — Liability and Indemnification

5.1 Limited Liability. The Member shall not be personally liable for any debt, obligation, or liability of the Company solely by reason of being a member or acting in a management capacity, except as otherwise required by the Act.

5.2 Indemnification. The Company shall indemnify and hold harmless the Member, and any officers appointed under Section 3.4, from and against any claims, liabilities, damages, losses, costs, and expenses (including reasonable attorneys' fees) arising out of the conduct of the Company's business or the Member's or officer's performance of duties on behalf of the Company, to the fullest extent permitted by the Act; provided, however, that no indemnification shall be made for acts or omissions constituting fraud, gross negligence, or willful misconduct.

Article VI — Transfer of Membership Interest

6.1 Transfer by Member. The Member may transfer all or any portion of the Member's interest in the Company to any person or entity. A transferee who acquires all of the Member's interest shall be admitted as a substitute member upon execution of a written agreement adopting this Agreement.

6.2 Admission of Additional Members. Additional members may be admitted to the Company only upon the written consent of the Member at the time of admission and upon execution of an amendment to this Agreement reflecting the new membership structure.

Article VII — Dissolution and Winding Up

7.1 Dissolution Events. The Company shall be dissolved upon:

- (a) A written decision by the Member to dissolve the Company;
- (b) The occurrence of any event that causes dissolution under the Act; or
- (c) Entry of a judicial decree of dissolution.

7.2 Winding Up. Upon dissolution, the Member (or a court-appointed liquidating trustee, if applicable) shall wind up the Company's affairs by: (i) completing or terminating unfinished business; (ii) collecting amounts owed to the Company; (iii) paying or adequately providing for all known debts, obligations, and liabilities of the Company; and (iv) distributing any remaining assets to the Member.

7.3 Articles of Dissolution. Following completion of winding up, the Member shall cause Articles of Dissolution to be filed with the Missouri Secretary of State in accordance with the Act.

Article VIII — General Provisions

8.1 Amendments. This Agreement may be amended or restated at any time by a written instrument signed by the Member.

8.2 Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the State of Missouri, without regard to its conflict of law principles.

8.3 Severability. If any provision of this Agreement is held invalid, illegal, or unenforceable, the remaining provisions shall remain in full force and effect.

8.4 Entire Agreement. This Agreement, together with the Articles of Organization, constitutes the entire agreement of the Member with respect to the Company and supersedes all prior understandings, agreements, and representations relating to the Company.

8.5 No Third-Party Beneficiaries. This Agreement is made for the sole benefit of the Member and the Company. No other person or entity shall have any rights or remedies under this Agreement.

8.6 Counterparts. This Agreement may be executed in one or more counterparts, each of which shall be deemed an original and all of which together shall constitute one and the same instrument. Electronic signatures shall be deemed valid.

Signature

IN WITNESS WHEREOF, the undersigned has executed this Operating Agreement as of the date first written above.

EMBER HORIZON STUDIOS LLC

A Missouri Single-Member Limited Liability Company

Signature: ____

Jacob O'Donnell, Sole Member

Date: ____